APPROVED as to form only:
By David Hopkinson at 8:29 am, Oct 07 2026

MEMORANDUM OF UNDERSTANDING
BETWEEN
THE CITY OF CHEYENNE AND THE NATIONAL FOREST FOUNDATION
SEPTEMBER 2026 MODIFICATION

This is a modification of the existing Memorandum of Understanding (MOU) City Contract #8081 by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming (City), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and the National Forest Foundation (NFF), located at 27 Fort Missoula Rd., Suite 3, Missoula, Montana 59804-7212. The City and NFF are collectively referred to as "Party" or "Parties."

WHEREAS this modification will extend the term of this MOU in section 2 from a period of (2) two years until October 31, 2026 to a period of (3) three years to October 31, 2027.

WHEREAS this modification will increase the amount of City Contract 8081 with National Forest Foundation in section 5a. from one hundred ten thousand dollars ($110,000.00) to one hundred forty nine thousand eight hundred dollars ($149,800.00).

WHEREAS this modification has been approved by the U.S. Endowment for Forestry and Communities.

WHEREAS, the City received a two hundred and fifty thousand dollars ($250,000) U.S. Endowment for Forestry and Communities Innovative Finance for National Forests Grant (IFNF) to pilot the potential use of the Wyoming State Revolving Loan Fund program (SRF) to finance forest restoration activities on the Medicine Bow-Routt National Forests and Thunder Basin National Grassland (Project);

WHEREAS, the City has been working collaboratively with various public and private

agencies to protect our source water and reduce wildfire risk. Catastrophic wildfire risk in the Medicine Bow National Forest endangers water sources for local communities, including Cheyenne. Funding and capacity constraints at the U.S. Forest Service limit its ability to rapidly address this risk;

WHEREAS, grant funds will be used to build capacity for outreach and coordination between partner agencies and communities, legal fees, travel, and the development of the feasibility study;

WHEREAS, the City wishes to partner with NFF in accordance with the grant application and award conditions; and

WHEREAS, NFF is a congressionally chartered non-profit organization whose mission is to restore and enhance National Forests and Grasslands. They lead forest conservation efforts and promote responsible recreation. They have experience in contract administration, project planning and implementation and will help facilitate the development of the SRF application.

NOW, THEREFORE, the Parties agree as follows:

1. Purpose. The purpose of this MOU is to set forth the terms and conditions by which the City will manage the grant funds it receives from the U.S. Endowment of Forestry and Communities and to set forth the details of the partnership as outlined in the attached Work Plan and Budget (Appendix A). This MOU supersedes City Contract #8081.

2. Term. This MOU shall commence on November 1, 2024 and shall remain in full force and effect for a period of three (3) years until October 31, 2027.

3. Payments. Neither Party shall have any obligation to make any payment of any kind to the other Party under this MOU. Payments shall occur in accordance with the U.S.

Endowment for Forestry and Communities Grant Number 24-00799 (City Contract No.8038).

4. Responsibilities of NFF. NFF shall:

a. Serve as the project implementation lead and manage deliverables under the scope of work for the Project;

b. Incur expenses in alignment with the Grant budget and scope of work; and

c. Abide by all U.S. Endowment for Forestry and Communities rules and the terms and conditions set forth in the Grant Agreement.

5. Responsibilities of the City. The City shall:

a. Disburse grant funds in accordance with the grant application and award to NFF for one hundred forty-nine thousand eight hundred dollars ($149,800.00) for the Community Coordinator's staff time and travel costs;

b. Administer the grant award pursuant to the Grant Agreement, including the assessment of progress, milestones, and reporting;

c. Provide ongoing technical assistance and support the success of the Project; and

d. Ensure that the grant match is met by City and Cheyenne Board of Public Utility staff.

6. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or

agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification. NFF agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Licensee's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) NFF's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by NFF, or its employees, in the performance of this Agreement. NFF acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq*., the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq*., and the

Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only Parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized

strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any Party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

8. Signatures. In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

City of Cheyenne

_____ By: _____

Date Patrick Collins, Mayor

(SEAL)

Attest:

_____

Kylie Soden, City Clerk

National Forest Foundation (NFF)

_____ By: _____

Date

Title: _____